

Plaintiff has served responses to the served discovery. Accordingly, the motions to compel responses to Set One are granted.

### *Sanctions*

When a motion to compel responses is filed, the court shall impose monetary sanctions against the losing party unless there was substantial justification. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) The court may require a party who misuses the discovery process to “pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (*Id.*, § 2023.030, subd. (a).) Misuse of the discovery process includes failing to respond to discovery. (*Id.*, § 2023.010, subd. (d).)

Defendants are seeking sanctions in the amount of \$2,160 for each of the motions based on 6 hours of work by an attorney at \$350 an hour, \$60 in costs. The 6 hours of attorney time is based on 3 hours to prepare each motion to compel and 3 hours in anticipation to prepare a reply to Plaintiff’s Opposition and to prepare and attend a hearing on the motion. Defendant did not file a reply to Plaintiff’s opposition. Further, no hearing has occurred yet. The court also notes the largely identical nature of the motions filed. Accordingly, Defendants request for sanctions is granted but reduced. Plaintiff is ordered to pay \$1230 in reduced sanctions to Clovis Law Group LLP, within 30 days of the service of the minute order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

### **Tentative Ruling**

**Issued By:** JS **on** 8/18/2026.  
(Judge's initials) (Date)

(48)

### Tentative Ruling

Re: **Wells Fargo Bank, N.A. v. Key Island, LLC**  
Superior Court Case No. 25CECG01764

Hearing Date: August 20, 2026 (Dept. 503)

Motion: Defendant Todd A. Mikles' Motion to Dismiss

### Tentative Ruling:

To deny defendant Todd A. Mikles' motion to dismiss. (Code Civ. Proc., § 585.)

**Explanation:**

The court lacks jurisdiction to consider a motion filed by a defendant after default has been entered against them. (*W.A. Rose Co. v. Municipal Court for Oakland-Piedmont Judicial Dist., Alameda County* (1959) 176 Cal.App.2d 67, 72.) The entry of default terminates a defendant's right to take any further affirmative steps in the litigation until either its default is set aside or a default judgement is entered. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385.)

Here, default was entered by the clerk of the court against defendant Todd A. Mikles ("Defendant") on November 5, 2025. The instant motion to dismiss was filed by Defendant on March 25, 2026. The court does not have jurisdiction to consider Defendant's motion as it was filed subsequent to the entry of default and has not been set aside. The motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

Issued By: JS on 8/19/2026.  
(Judge's initials) (Date)